Related Article/Schedule : 16 & 335

Supreme Court Judgement: It upheld the constitutional validity of the 77th Amendment Act (1995) the 81st Amendment Act (2000), the 82nd Amendment Act (2000) and the 85th Amendment Act (2001). It said that the impugned Constitutional Amendment Acts by which Article 16(4A) and Article 16(4B) have been inserted flow from Article 16(4). They do not alter the structure of Article 16(4). They retain the controlling factors or the compelling reasons, namely, backwardness and inadequacy of representation which enable the State to provide for reservation keeping in mind the overall efficiency of the State administration under Article 335. These impugned amendments are confined only to Scheduled Castes and Scheduled Tribes. They do not obliterate any of the constitutional requirements, namely, ceiling limit of 50% (quantitative limitation), the concept of creamy layer (qualitative exclusion), the sub-classification between the OBCs on the one hand and the SCs and the STs on the other hand as held in the *Indra Sawhney* case[19] (1992) and the concept of post-based roster with inbuilt concept of replacement as held in the *R.K. Sabharwal* case[20] (1995).

I.R. Coelho Case (2007)

Name of the Case	: I.R. Coelho vs. State of Tamil Nadu
Year of Judgement	: 2007
Popular Name	: Ninth Schedule case
Related Topic/Issue	: Judicial review of the ninth schedule
Related Article/Schedule	: 31B & Ninth Schedule

Supreme Court Judgement: It reaffirmed its judgement delivered in the *Waman Rao* case[21] (1980). Therefore, it held that the amendments to the Constitution made on or after 24 April 1973 (i.e., the date of verdict in the *Kesavananda Bharati* case[22]) by which the Ninth Schedule is amended by inclusion of various laws therein would be open to challenge on the ground that they damage or destroy the basic structure of the Constitution. In addition, it laid down certain tests which are to be applied for deciding the validity of those constitutional amendments. The fundamental question before the court was whether on or after 24 April 1973, when basic structure doctrine was propounded, it is permissible for the Parliament under Article 31B to immunize legislations from fundamental rights by inserting them into the Ninth Schedule and, if so, what is its effect on the power of judicial review of the court.

Aruna Ramachandra Shanbaug Case (2011)

Name of the Case	: Aruna Ramachandra Shanbaug vs. Union of India
Year of Judgement	: 2011
Popular Name	: —
Related Topic/Issue	: Euthanasia